

GZ: 2025-0.192.907 dated March 17, 2025 (Case Number: DSB-D213.1903)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), statistical data, etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

RULING

The Data Protection Authority decides in the context of the data protection review pursuant to Art. 58 para. 1 lit. b GDPR against B*** Parkraumbewirtschaftung Ges.m.b.H. (FN *9*3*1v) as follows:

1. The data processing by B*** Parkraumbewirtschaftung Ges.m.b.H. through video cameras in parking and storage areas within the territory of the Republic of Austria is prohibited with immediate effect and under threat of further enforcement.
2. The suspensive effect of any timely filed and admissible complaint pursuant to Art. 130 para. 1 no. 1 B-VG is excluded.

Legal bases: Art. 4 no. 2 and no. 7, Art. 5, Art. 6, Art. 51 para. 1, Art. 57 para. 1 lit. a and lit. h as well as Art. 58 para. 1 lit. b and para. 2 lit. f of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 9, 45 and 46 of the General Administrative Procedure Act 1991 (hereinafter: AVG), Federal Law Gazette No. 51/1991 as amended; § 13 para. 1 and para. 2 of the Administrative Court Procedure Act (hereinafter: VwGVG), Federal Law Gazette I No. 33/2013 as amended.

REASONING

A. Procedural History

1. The Data Protection Authority initiated an ex officio review procedure against B*** Parkraumbewirtschaftung Ges.m.b.H. with a decision dated June 14, 2023, and instructed it to respond to questions regarding warning letters sent by B*** Parkraumbewirtschaftung Ges.m.b.H. The response to the questions was urged by a letter from the Data Protection Authority dated August 3, 2023. The request letters remained unanswered or were returned to the Data Protection Authority with the note "not resolved."
2. With a new request letter dated October 11, 2024, the Data Protection Authority again requested B*** Parkraumbewirtschaftung Ges.m.b.H. to answer questions regarding several video surveillance measures of parking lots or public traffic areas reported to the Data Protection Authority in Austria. This request was also not answered by B*** Parkraumbewirtschaftung Ges.m.b.H.
3. By decision of the Data Protection Authority dated December 19, 2024, Mr. Peter J*** was personally summoned as the corporate representative (sole authorized managing partner) of B*** Parkraumbewirtschaftung Ges.m.b.H. to an oral hearing at the premises of the Data Protection Authority and did not appear despite proper service.
4. The Data Protection Authority requested the compulsory enforcement of the threatened coercive fine in the summons decision by letter to the Magistrate of the City of Vienna dated January 27, 2025, and issued another decision on January 27, 2025, with a personal summons for Mr. Peter J*** under threat of his compulsory presentation. The summoned Mr. Peter J*** also did not appear for the further appointment for an oral hearing despite proper service of the summons decision.

B. Subject of Review

The subject of the ex officio review procedure is the question of whether the video surveillance of parking lots operated by B*** Parkraumbewirtschaftung Ges.m.b.H. and, consequently, any video surveillance of public traffic areas on the territory of the Republic of Austria is lawful, i.e., whether it complies with the principles of data processing according to Art. 5 GDPR and whether at least one legality condition according to Art. 6 para. 1 GDPR is fulfilled.

If unlawful data processing and thus a violation of the GDPR is to be assumed, the further question arises as to which remedial powers according to Art. 58 para. 2 of the GDPR may be considered to eliminate the identified violations.

C. Findings of Facts

1. The procedural history described under A. and documented in the files serves as the basis for the

findings of facts.

2. B*** Parkraumbewirtschaftung Ges.m.b.H. is a limited liability company registered under FN *9*3*1v in the commercial register, whose business sector is the acquisition, rental, and leasing of parking spaces. It was established with a declaration on the establishment of the company dated November 18, 2021, and its dissolution was decided by a general meeting resolution on February 14, 2025. Since February 14, 2025, B*** Parkraumbewirtschaftung Ges.m.b.H. has been registered in the commercial register as "B*** Parkraumbewirtschaftung Ges.m.b.H. in Liqu." Mr. Peter J***, born on **. May 199*, was registered in the commercial register since April 4, 2023, as the sole authorized managing director of B*** Parkraumbewirtschaftung Ges.m.b.H. and has been listed there since February 14, 2025, as its sole authorized liquidator.

****Evaluation of Evidence:**** The findings under C.2. are based on an official inquiry conducted and documented in the records regarding the commercial register for FN *9*3*1v.

3. According to its own statements, B*** Parkraumbewirtschaftung Ges.m.b.H. has more than 350 parking spaces and garage spaces in Europe, mostly in Vienna. It sends warning letters to holders of motor vehicles in connection with alleged disturbances of possession on the parking spaces it manages. The parking spaces are monitored by B*** Parkraumbewirtschaftung Ges.m.b.H. using an unspecified number of video cameras, and the warning letters include images of the alleged disturbances of possession (e.g., by driving onto those parking spaces). The parking spaces monitored by B*** Parkraumbewirtschaftung Ges.m.b.H. include, but are not limited to, properties at the addresses "B***-Gasse *4, 1*** Wien", "M***platz *6, 1*** Wien", "O***straße *2, 1*** Wien" and the "****gelände in 2*** I***hausen", as well as likely other properties within the territory of the Republic of Austria. In the course of the video surveillance of those parking spaces, B*** Parkraumbewirtschaftung Ges.m.b.H. collects vehicle registration numbers, which are subsequently used to send warning letters to the respective vehicle holders.

****Evaluation of Evidence:**** The findings regarding C.3. are based, on the one hand, on an official search at https://www.b***parkraumbewirtschaftung.com/kundenservice/ (last queried on March 17, 2025). Furthermore, the findings are based on the documented reports and the warning letters and images of the properties monitored by video that are evident therein. The finding that B***

Parkraumbewirtschaftung Ges.m.b.H. monitors the parking spaces it manages using video cameras is already evident from its own warning letters, which include images of vehicles that are allegedly involved in disturbances of possession. The images show that they were taken using video camera(s), as they include a watermark with the inscription "H**watch." According to official research, "H**watch" is a provider of surveillance cameras (see https://h**watch.com/at/, queried on March 17, 2025). The finding regarding the monitored parking spaces arises from the documented reports, which suggest that in addition to the explicitly mentioned properties, other parking spaces within the territory of the Republic of Austria are also monitored. In this context, the data protection authority particularly considers the lack of cooperation from B*** Parkraumbewirtschaftung Ges.m.b.H. in the present proceedings and that consequently, it could not be disproven that other parking spaces within the territory of the Republic of Austria are not also monitored by video.

4. B*** Parkraumbewirtschaftung Ges.m.b.H. was sued by the C*** Association before the Commercial Court of Vienna for an injunction regarding the sending of the previously described warning letters. On January 8, 2025, a judicial settlement was concluded, whereby B*** Parkraumbewirtschaftung Ges.m.b.H. is obliged to refrain from doing so starting January 9, 2025.

in warning letters related to alleged disturbances of possession, to demand payment of fees from consumers that exceed the actual costs incurred for a purpose-appropriate legal pursuit, whereby the declaration of abstention also pertains to similar behaviors, particularly the demand for a compensation payment for the right to sue. Furthermore, B*** Parkraumbewirtschaftung Ges.m.b.H. has committed to publishing that settlement for a duration of 90 days and has accomplished this (at least) via its website.

Evidence Assessment: The findings regarding C.4. arise from the settlement concluded before the Commercial Court of Vienna under case number *6 Cg*43/25r on January 8, 2025, which was published at https://www.b***parkraumbewirtschaftung.com/ (accessed on March 17, 2025).

5. The former managing director and now sole authorized representative liquidator of B***

Parkraumbewirtschaftung Ges.m.b.H., Mr. Peter J***, did not appear for an oral hearing before the Data Protection Authority despite multiple summonses. Furthermore, several administrative penalty proceedings have been initiated by the Data Protection Authority against B***

Parkraumbewirtschaftung Ges.m.b.H. for violation of the duty to cooperate under Article 31 GDPR, in which fines were imposed against B*** Parkraumbewirtschaftung Ges.m.b.H. B***

Parkraumbewirtschaftung Ges.m.b.H. requested access to the files in the aforementioned administrative penalty proceedings but also did not appear at the date set by the Data Protection Authority.

Evidence Assessment: The findings regarding C.5. are based on the documented summons notices and the related records in the present proceedings, as well as the documented correspondence known to B*** Parkraumbewirtschaftung Ges.m.b.H. concerning its request for access to the files in the aforementioned administrative penalty proceedings, particularly regarding case numbers: D560.1123, D560.1124, and D560.1128.

6. Media reports indicate that similar warning letters are now also being sent by companies established in Poland to affected parties in Austria.

Evidence Assessment: The findings regarding C.6. are based on the documented media reports from “*** Magazine” dated March 4, 2025, at 7:00 PM, and from the “O***-Newspaper” dated February 26, 2025.

D. Legally, this leads to:

D.1. On the lack of cooperation and the factual findings

It should be noted that a party to the proceedings is generally obliged to contribute to the determination of the facts through a substantiated presentation (cf. VwGH 24.01.2013, 2010/07/0218). Ultimately, it is in the hands of the party itself to effectively participate in the proceedings and to submit its presentation comprehensively and in a timely manner to avoid any potential legal disadvantages.

Where the authority cannot ascertain facts (including the taking of evidence) without the participation of the party, because they are only known to that party, it is up to the party to provide its knowledge (cf. Hengstschläger/Leeb, Administrative Procedure Law6, Rz. 302 referring to VwGH 19.12.2001, 2000/20/0318; 26.4.2016, Ra 2016/03/0038; 27.2.2018, Ro 2016/05/0009).

The obligation of a party to cooperate extends only to factual questions and not to the legal question to be resolved or to the domestic legal provisions to be applied by the authority (cf. e.g., VwSlg. 12.684 A/1988). The same applies to the application of directly applicable Union law, as this is part of the national legal framework.

As can be seen from the findings, B*** Parkraumbewirtschaftung Ges.m.b.H. was repeatedly unsuccessfully requested to participate in the present proceedings and to submit statements. Even the initiation of an administrative penalty proceeding and the imposition of a fine for violation of the duty to cooperate under Article 31 GDPR did not elicit any response from the respondent.

Likewise, the sole authorized representative of B*** Parkraumbewirtschaftung Ges.m.b.H., Mr. Peter J***, did not appear for an oral hearing before the Data Protection Authority despite duly served summonses and the threatened coercive measures therein.

The improper participation of a party in the evidence procedure is subject to free assessment of evidence according to § 45 para. 2 and § 46 AVG (cf. the case law cited in Walter/Thienel, Administrative Procedure Laws I 2, p. 678, E 218 f. to § 45 AVG; cf. also VwGH 04.09.2013, 2011/08/0201).

According to the consistent case law of the Administrative Court, it is within the authority's discretion in the context of free assessment of evidence to draw potentially negative conclusions for the party from the lack of cooperation of a party in the investigative procedure (cf. e.g., VwGH 15.05.1986, ZI. 86/03/0044, or VwGH 11.06.1991, ZI. 90/07/0166).

Since the relevant facts could be sufficiently established in the present case based on official inquiries and the reports received by the Data Protection Authority, and only legal questions remained to be resolved, it was deemed appropriate, expedient, simple, and cost-saving to refrain from further measures to compel B*** Parkraumbewirtschaftung Ges.m.b.H. to cooperate, especially since it was given sufficient opportunities to participate in the present proceedings.

D.2. On the admissibility of using evidence from other administrative proceedings

According to § 46 AVG, any evidence that is suitable for determining the relevant facts of the case and is appropriate given the circumstances of the individual case is admissible. According to § 55 para. 1 AVG, the authority may also replace or supplement evidence collection with other investigations. In this regard, it is permissible for evidence and results from another administrative (investigative) procedure to be utilized in the administrative procedure based on free evaluation of evidence and while ensuring the right to be heard (see, for example, the ruling of the Administrative Court of Austria dated October 24, 1986, Zl. 84/17/0218, RS 4 and 5). Since the requests for access to files concerning the ho. GZs: D560.1123, D560.1124, and D560.1128 of B*** Parkraumbewirtschaftung Ges.m.b.H. referenced in the evaluation of evidence are known—especially since they were submitted by the party itself in those proceedings—there are no "secret" pieces of evidence that could not be utilized in the present procedure.

D.3. Regarding the liquidation or winding up of B*** Parkraumbewirtschaftung Ges.m.b.H.

The Data Protection Authority does not overlook that the dissolution of B*** Parkraumbewirtschaftung Ges.m.b.H. was decided by a resolution of the general assembly on February 14, 2025. Liquidation aims to settle the affairs of a company with the goal of orderly economic winding up and removal from the commercial register. The purpose of a company in the liquidation stage is thus to convert the company's assets into cash, satisfy creditors, and distribute the remaining assets (see OGH 31.08.2006, 6 Ob 15/05g).

The onset of liquidation generally does not change the identity of the company or its legal capacity, as it only ceases with its (full) termination and not merely with the onset of liquidation (see RIS-Justiz RS0061815; see also, for example, BVwG 26.11.2020, W145 2216498-2). The use of an additional designation indicating liquidation (as in this case "in liquidation") does not lead to a change in the company name (see RIS-Justiz RS0121129).

Thus, capital companies capable of being parties lose their capacity to be parties only with their full termination. This, according to prevailing case law, requires the absence of assets and the removal of the company from the commercial register (see RIS-Justiz RS0050186). This applies to both civil and administrative legal proceedings.

Applied to the present case, it should therefore be noted as an interim result that B***

Parkraumbewirtschaftung Ges.m.b.H. was legally capable and capable of being a party in the sense of § 9 AVG at the time of the issuance of this decision.

However, even if one were to dispute this in the present case, it should be pointed out that the case law of the European Court of Justice states that when processing personal data, it does not matter whether the responsible parties in the sense of Art. 4 No. 7 GDPR have legal personality and their own legal capacity or not (see ECJ 27.02.2025, C-638/23 [Office of the Tyrolean State Government], para. 34).

D.4. Regarding accountability and the burden of proof

Art. 5 para. 1 GDPR establishes the principles for the processing of personal data, which represent directly applicable binding rules. According to the consistent case law of the European Court of Justice, any processing of personal data must comply with the principles set out in Art. 5 leg. cit. as well as at least one of the conditions listed in Art. 6 leg. cit. regarding the legality of processing (see regarding the comparable legal situation under Directive 95/46/EC already ECJ December 16, 2008, C-524/06 [Huber], para. 48).

The importance of adhering to the processing principles enshrined in Art. 5 para. 1 GDPR is underscored not least by the fact that a violation of those principles is sanctioned with a higher penalty framework according to Art. 83 para. 5 lit. a GDPR.

According to Art. 5 para. 2 GDPR, the responsible party is responsible for compliance with para. 1 leg. cit. and must be able to demonstrate compliance. This "accountability" is a central element of the GDPR, which emphasizes the increased self-responsibility of the responsible party.

The European Court of Justice derives from the accountability under Art. 5 para. 2 GDPR that the responsible party must not only be able to demonstrate the legality of data processing but also bears the burden of proof that the personal data processed by them is collected for specified, explicit, and legitimate purposes and processed lawfully, in good faith, and in a manner that is understandable to

the affected individuals (see ECJ July 4, 2023, C-252/21 [Federal Cartel Office], para. 95).

D.5. On the merits (point of decision 1)

It should be noted at the outset that video surveillance—if it processes personal image data—constitutes "processing" in the sense of Art. 4 No. 2 GDPR, which falls within the material scope of the GDPR (see generally, for example, BVwG 09.01.2025, W211 2283857-1; see regarding the qualification of vehicle registration plates as generally available personal data, for example, BVwG 23.09.2022, W137 2252921-1).

The data processing operations to be examined in this case are attributable to B***

Parkraumbewirtschaftung Ges.m.b.H., as it can be assumed that they process image data from the video surveillance of their parking spaces for their own purposes—thus making decisions about the purposes and means of data processing—and are therefore to be regarded as the responsible party in the sense of Art. 4 No. 7 GDPR.

As can be seen from the established course of proceedings, B*** Parking Management Ges.m.b.H. was repeatedly and unsuccessfully requested to participate in the present proceedings and to demonstrate the legality of the data processing it conducts through video surveillance of parking spaces on the territory of the Republic of Austria.

B*** Parking Management Ges.m.b.H. ultimately failed to demonstrate that the data processing it operates through video surveillance, in particular, complies with the principles of transparency, data minimization, storage limitation, as well as integrity and confidentiality, nor that the data processing it conducts is lawful within the meaning of Art. 6 para. 1 GDPR. Rather, during the course of the investigation, the impression arose that B*** Parking Management Ges.m.b.H. does not wish to participate in the present proceedings or to evade the proceedings.

As a result, B*** Parking Management Ges.m.b.H. – disregarding its accountability and burden of proof according to Art. 5 para. 2 GDPR – could not demonstrate that the data processing it operates in the form of video surveillance of parking spaces on the territory of the Republic of Austria meets the processing principles and is lawful (cf. regarding the video surveillance of properties CJEU 11 December 2019, C-708/18 [TK], para. 36 with references). Consequently, there is a violation of the GDPR.

The Data Protection Authority does not overlook that, according to the case law of the Administrative Court, it has no legal basis for an independent determination regarding the potential unlawfulness of a data protection-relevant processing operation in a procedure initiated ex officio (cf. VwGH 14.12.2021, Ro 2020/04/0032).

However, the Data Protection Authority has all remedial powers available under Art. 58 para. 2 GDPR in an ex officio initiated review procedure. According to the case law of the European Court of Justice, situations in which the GDPR is violated should be brought back into compliance with Union law through the intervention of the national supervisory authority (cf. CJEU 14 March 2024, C-46/23 [Nemzeti Adatvédelmi és Információszabadság Hatóság], para. 40).

According to Art. 58 para. 2 lit. f GDPR, the Data Protection Authority can impose a temporary or definitive restriction on processing, including a prohibition. The chosen measure must be suitable, necessary, and proportionate concerning ensuring compliance with the GDPR, taking into account the circumstances of the individual case (cf. Recital 129 GDPR).

Since, in the present case, B*** Parking Management Ges.m.b.H. has not participated in the proceedings at all and given that, based on the documented complaints and media reports, it can be assumed that a large number of affected individuals are impacted by the processing activities of B*** Parking Management Ges.m.b.H., the Data Protection Authority deemed it necessary to issue an immediate prohibition on data processing, as the choice of milder means does not appear appropriate.

B*** Parking Management Ges.m.b.H. will further have to demonstrate to the Data Protection Authority in an appropriate manner whether and how it has complied with the performance order.

D.6. Regarding the exclusion of suspensive effect (Decision Point 2)

According to § 13 para. 1 VwGVG, a timely and admissible complaint according to Art. 130 para. 1 Z 1 B-VG has a suspensive effect.

According to § 13 para. 2 VwGVG, the authority can exclude the suspensive effect by decision if, after weighing the affected public interests and the interests of other parties, the immediate enforcement of the contested decision or the exercise of the rights granted by the contested decision is urgently required due to a risk of delay. Such a statement should preferably be included in the decision on the main matter.

This results in the immediate enforceability of performance decisions.

As previously stated, the video surveillance operated by B*** Parking Management Ges.m.b.H. of parking spaces on the territory of the Republic of Austria violates fundamental principles of the GDPR, with a large number of affected individuals being assumed.

The interest of B*** Parking Management Ges.m.b.H. in monitoring the parking spaces it manages through video cameras is therefore assessed as lesser in this case than the public interest – namely in the form of the interest of a large number of affected individuals – not to be subjected to unlawful video surveillance. Furthermore, the criterion of "risk of delay" is also met, as it can be assumed that B*** Parking Management Ges.m.b.H. continues to operate unlawful video surveillance, and consequently, if action is delayed, there is an ongoing and concrete risk that affected individuals will be unlawfully monitored by video cameras.

In other words, if the suspensive effect is not excluded, serious disadvantages for the public good or for third parties would arise, which would significantly outweigh the disadvantages that would be incurred by others if the suspensive effect of the complaint is not excluded (cf. VwGH 5.9.2018, Ra 2017/03/0105).

For this reason, a decision was made accordingly.